

3.2.1 Government and politics of the USA

Government and politics of the USA is divided into eight sections. Each has a particular focus but their interrelationships must be understood to appreciate the complexities of the system.

Students will study each of the prescribed sections below.

3.2.1.1 The constitutional framework of US government

Key concepts and terminology:

- US Constitution
- Bill of Rights

- separation of powers
- checks and balances
- federalism.

Focus

Students should analyse and evaluate:

- the nature and significance of the US Constitution
- the significance of constitutional principles
- framework of government laid down in the US Constitution
- federal system of government
- federal state relations
- amendment process
- debates concerning the importance of the US Constitution to the working of contemporary US government
- protection of civil liberties and rights under the US Constitution, Bill of Rights, and Supreme Court rulings.

3.2.1.2 The legislative branch of government: Congress

Key concepts and terminology:

- Congress
- House of Representatives
- Senate
- oversight
- committee System.

Focus

Students should analyse and evaluate:

- the structure, role and powers of the US Congress
- composition of Congress, the different terms of office and party allegiance
- debates concerning the functions, powers and effectiveness of Congress in legislation, oversight and the power of the purse
- party system and committee system and their significance within Congress
- representative role of senators and representatives
- relative strengths of the House of Representatives and the Senate
- relationship of Congress to the executive branch of government and the Supreme Court.

3.2.1.3 The executive branch of government: President

Key concepts and terminology:

- The Executive
- The President
- formal powers
- informal powers
- checks and balances
- imperial presidency
- imperilled presidency

Focus

Students should analyse and evaluate:

- sources of presidential power: selecting two relevant examples to demonstrate how these have been used by different presidents
- difference between formal powers (enumerated and inherent powers outlined in Article 2 of the constitution) and informal powers (President as de facto party leader, agenda setter, world leader, modern developments eg stretching of implied powers and the creation of institutions such as Executive Office of the President (EXOP))
- constraints on President's ability to exercise those powers:
 - the effectiveness of formal checks and balances
 - key variables such as party support in Congress
 - the prevailing orientation of the Supreme Court
 - the attitudes of the media and public opinion
- the relationship between the presidency and other institutions eg the cabinet, the Executive Office of the President (EXOP), the federal bureaucracy and federal agencies, and why this relationship varies from one president to another
- one example that shows the waxing and waning of presidential power
 - eg Franklin D. Roosevelt (FDR) and Executive Office of the President (EXOP), John F. Kennedy (JFK) and the Cuban missile crisis, Reagan and Clinton's relationships with Congress, significance of which party controls Congress
- the debate about the 'Imperial versus Imperilled Presidency'.

3.2.1.4 The judicial branch of government

Key concepts and terminology:

- Supreme Court
- judicial activism
- judicial restraint
- judicial review
- strict and loose constructionism.

Focus

Students should analyse and evaluate:

- process of selection and appointment of Supreme Court judges
- current composition
- the nature of judicial power
- the constitutional role of the Supreme Court:
 - Supreme Court as the guardian of the constitution/constitutional interpretation
 - Supreme Court as protector of citizens' rights
- the significance of judicial review

- debates about the political significance of the Supreme Court
- two examples of landmark rulings and related debates and controversies
 - these are Court decisions which establish a significant new legal principle or concept, or otherwise substantially change the interpretation of existing law. The following are a guide to some of the wide range of landmark cases that could be taught:
 - The Warren Court 1954–1969
 - Brown vs Topeka Board of Education (1954)
 - Miranda vs Arizona (1966)
 - The Burger Court 1969–1986
 - Roe vs Wade (1973)
 - United States vs Nixon (1974)
 - The Rehnquist Court 1986–2005
 - Texas vs Johnston (1989)
 - Bush vs Gore (2000)
 - The Roberts Court 2005 – present
 - District of Columbia vs Heller (2008)
 - Obergefell vs Hodges (2015)
- significance of the judiciary in shaping one area of public policy in terms of, for example, federalism, civil rights, race, gender, punishment.

3.2.1.5 The electoral process and direct democracy

Key concepts and terminology:

- electoral college system
- primaries
- caucuses
- national nominating conventions
- direct democracy
- voting behaviour
- popular vote
- split ticket voting
- abstention
- incumbency.

Focus

Students should analyse and evaluate:

- the electoral systems used in the USA
- main characteristics of presidential and congressional elections and campaigns
- candidate selection and nomination:
 - primaries
 - caucuses
 - national nominating conventions
- debates concerning the workings, outcomes and impact of the electoral college system on campaigns
- factors determining electoral outcomes:
 - money
 - media
 - issues

- leadership
- the significance of incumbency
- debates about campaign finance
- direct democracy at state level:
 - referendums, initiatives, propositions, recall elections and debates concerning their use
- voting behaviour and the main variables affecting the way people vote in the USA
- links between parties and their core voting coalitions
- factors in voting behaviour:
 - issues, candidates
 - the significance of recent (post 1980) and historic (eg 1932 and 1968) re-aligning elections can be used to illustrate arguments relating to factors influencing voting
- split ticket voting and high levels of abstention in US elections.

3.2.1.6 Political parties

Key concepts and terminology:

- ideology
- factionalism
- party decline
- party renewal
- party organisation
- third parties
- independent candidates.

Focus

Students should analyse and evaluate:

- the two main political parties and their:
 - ideologies
 - values
 - policies
 - traditions
 - party organisation
- the ideological changes in both the Democratic and Republican parties making them more distinct and polarized
- factionalised nature of parties and internal divisions
- debates concerning party decline or renewal
- weakness of US parties
- the two party dominance in US politics
- significance of third parties and independent candidates.

3.2.1.7 Pressure groups

Key concepts and terminology:

- political pluralism
- electoral finance
- iron triangles
- promotional groups

- interest groups
- Political Action Committees and Super PACs.

Focus

Students should analyse and evaluate:

- the extent of political pluralism in the USA
- typologies of pressure groups
- methods and tactics used by pressure groups to influence decision making
- pressure group funding of elections:
 - funding of Washington insiders
 - iron triangles
 - reinforcing incumbency
 - relative power of pressure groups vis-a-vis political parties
- debates concerning the power of pressure groups in the USA
- role and significance of Political Action Committees and Super PAC's regarding electoral finance.

3.2.1.8 Civil rights

Key concepts and terminology:

- Civil Liberties
- Bill of Rights
- landmark rulings
- Supreme Court
- Civil Rights movement.

Focus

Students should analyse and evaluate:

- protection of civil liberties and rights under:
 - the constitution
 - Bill of Rights
 - subsequent amendments
 - landmark rulings of the Supreme Court
- the role of pressure groups in promoting and supporting rights
- the impact of salient political issues concerning civil rights and liberties on US politics eg in relation to one of:
 - abortion
 - race
 - immigration
 - religion
 - freedom of speech
 - gender
 - sexual orientation
 - privacy
 - disability
 - the right to bear arms